

ATTORNEY OR PARTY WITHOUT ATTORNEY		STATE BAR NUMBER:		FOR COURT USE ONLY	
NAME: Franciscus Dylan Rosario					
FIRM NAME: In Pro Per					
STREET ADDRESS: 7624 Melody Drive					
CITY: Rohnert Park		STATE: CA		ZIP CODE: 94928	
TELEPHONE NO.: 650.488.7510		FAX NO.:			
EMAIL ADDRESS: soltrinox@gmail.com					
ATTORNEY FOR (name): Self-Represented Plaintiff					
SUPERIOR COURT OF CALIFORNIA, COUNTY OF		SAN FRANCISCO			
STREET ADDRESS: 400 McAllister Street					
MAILING ADDRESS: 400 McAllister Street					
CITY AND ZIP CODE: San Francisco, 94102					
BRANCH NAME: Civic Center Courthouse					
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO					
DEFENDANT/RESPONDENT: CSAA INSURANCE EXCHANGE; AND DOES 1 THROUGH 50, INCLUSIVE					
CASE MANAGEMENT STATEMENT				CASE NUMBER:	
(Check one): ☒ UNLIMITED CASE (Amount demanded exceeds \$35,000)		☐ LIMITED CASE (Amount demanded is \$35,000 or less)		CGC-25-631802	
A CASE MANAGEMENT CONFERENCE is scheduled as follows:					
Date: 09/09/2026		Time: 10:30 AM		Div.: Room:	
Address of court (if different from the address above):					
☒ Notice of Intent to Appear by Telephone, by (name): Franciscus Dylan Rosario					

INSTRUCTIONS: All applicable boxes must be checked, and the specified information must be provided.

1. **Party or parties** (answer one):
- a. ☒ This statement is submitted by party (name): Plaintiff Franciscus Dylan Rosario, in propria persona.
- b. ☐ This statement is submitted **jointly** by parties (names):
2. **Complaint and cross-complaint** (to be answered by plaintiffs and cross-complainants only)
- a. The complaint was filed on (date): 12/23/2025
- b. ☐ The cross-complaint, if any, was filed on (date):
3. **Service** (to be answered by plaintiffs and cross-complainants only)
- a. ☒ All parties named in the complaint and cross-complaint have been served, have appeared, or have been dismissed.
- b. ☐ The following parties named in the complaint or cross-complaint
- (1) ☐ have not been served (specify names and explain why not):
- (2) ☐ have been served but have not appeared and have not been dismissed (specify names):
- (3) ☐ have had a default entered against them (specify names):
- c. ☐ The following additional parties may be added (specify names, nature of involvement in case, and date by which they may be served):
4. **Description of case**
- a. Type of case in ☒ complaint ☐ cross-complaint (Describe, including causes of action):
- Fraud; Bad Faith; Violations of Insurance Code

PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO	CASE NUMBER:
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4. b. Provide a brief statement of the case, including any damages (*if personal injury damages are sought, specify the injury and damages claimed, including medical expenses to date [indicate source and amount], estimated future medical expenses, lost earnings to date, and estimated future lost earnings; if equitable relief is sought, describe the nature of the relief*):

See MC-025, Attachment 4b (1 page).

☒ (If more space is needed, check this box and attach a page designated as Attachment 4b.)

5. **Jury or nonjury trial**

The party or parties request ☒ a jury trial ☐ a nonjury trial. (*If more than one party, provide the name of each party requesting a jury trial*):

Franciscus Dylan Rosario, Plaintiff

6. **Trial date**

a. ☐ The trial has been set for (date):

b. ☒ No trial date has been set. This case will be ready for trial within 12 months of the date of the filing of the complaint (*if not, explain*):

c. Dates on which parties or attorneys will not be available for trial (*specify dates and explain reasons for unavailability*):

Plaintiff: none known other than the pending appeals.

7. **Estimated length of trial**

The party or parties estimate that the trial will take (*check one*)

a. ☒ days (*specify number*): 5

b. ☐ hours (short causes) (*specify*):

8. **Trial representation (to be answered for each party)**

The party or parties will be represented at trial ☒ by the attorney or party listed in the caption ☐ by the following:

a. Attorney:

b. Firm:

c. Address:

d. Telephone number:

f. Fax number:

e. Email address:

g. Party represented:

☐ Additional representation is described in Attachment 8.

9. **Preference**

☐ This case is entitled to preference (*specify code section*):

10. **Alternative dispute resolution (ADR)**

a. **ADR information package.** Please note that different ADR processes are available in different courts and communities; read the ADR information package provided by the court under rule 3.221 of the California Rules of Court for information about the processes available through the court and community programs in this case.

(1) For parties represented by counsel: Counsel ☐ has ☐ has not provided the ADR information package identified in rule 3.221 to the client and reviewed ADR options with the client.

(2) For self-represented parties: Party ☒ has ☐ has not reviewed the ADR information package identified in rule 3.221.

b. **Referral to judicial arbitration or civil action mediation** (if available).

(1) ☐ This matter is subject to mandatory judicial arbitration under Code of Civil Procedure section 1141.11 or to civil action mediation under Code of Civil Procedure section 1775.3 because the amount in controversy does not exceed the statutory limit.

(2) ☐ Plaintiff elects to refer this case to judicial arbitration and agrees to limit recovery to the amount specified in Code of Civil Procedure section 1141.11.

(3) ☒ This case is exempt from judicial arbitration under rule 3.811 of the California Rules of Court or from civil action mediation under Code of Civil Procedure section 1775 et seq. (*specify exemption*):

Amount in controversy exceeds the statutory limit for judicial arbitration.

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10. c. In the table below, indicate the ADR process or processes that the party or parties are willing to participate in, have agreed to participate in, or have already participated in (*check all that apply and provide the specified information*):

	The party or parties completing this form are willing to participate in the following ADR processes (<i>check all that apply</i>):	If the party or parties completing this form in the case have agreed to participate in or have already completed an ADR process or processes, indicate the status of the processes (<i>attach a copy of the parties' ADR stipulation</i>):
(1) Mediation	☒	☒ Mediation session not yet scheduled ☐ Mediation session scheduled for (date): ☐ Agreed to complete mediation by (date): ☐ Mediation completed on (date):
(2) Settlement conference	☐	☐ Settlement conference not yet scheduled ☐ Settlement conference scheduled for (date): ☐ Agreed to complete settlement conference by (date): ☐ Settlement conference completed on (date):
(3) Neutral evaluation	☐	☐ Neutral evaluation not yet scheduled ☐ Neutral evaluation scheduled for (date): ☐ Agreed to complete neutral evaluation by (date): ☐ Neutral evaluation completed on (date):
(4) Nonbinding judicial arbitration	☐	☐ Judicial arbitration not yet scheduled ☐ Judicial arbitration scheduled for (date): ☐ Agreed to complete judicial arbitration by (date): ☐ Judicial arbitration completed on (date):
(5) Binding private arbitration	☐	☐ Private arbitration not yet scheduled ☐ Private arbitration scheduled for (date): ☐ Agreed to complete private arbitration by (date): ☐ Private arbitration completed on (date):
(6) Other (<i>specify</i>):	☐	☐ ADR session not yet scheduled ☐ ADR session scheduled for (date): ☐ Agreed to complete ADR session by (date): ☐ ADR completed on (date):

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11. Insurance

- a. ☐ Insurance carrier, if any, for party filing this statement (*name*):
- b. Reservation of rights: ☐ Yes ☐ No
- c. ☐ Coverage issues will significantly affect resolution of this case (*explain*):

12. Jurisdiction

Indicate any matters that may affect the court's jurisdiction or processing of this case and describe the status.

☐ Bankruptcy ☐ Other (*specify*):

Status: No jurisdictional issues.

13. Related cases, consolidation, and coordination

- a. ☒ There are companion, underlying, or related cases.
- (1) Name of case: Rosario v. Abdelhalim et al.
- (2) Name of court: San Francisco Superior Court
- (3) Case number: CGC-25-631801
- (4) Status: anti-SLAPP August 6, 2026 (DocID 10361462), recon denied August 11, 2026 (minutes; no order DocID), CMC September 9, 2026, appeal filed August 14, 2026, Tx 80347363.
- ☒ Additional cases are described in Attachment 13a.
- b. ☐ A motion to ☐ consolidate ☐ coordinate will be filed by (*name party*):

14. Bifurcation

- ☐ The party or parties intend to file a motion for an order bifurcating, severing, or coordinating the following issues or causes of action (*specify moving party, type of motion, and reasons*):

15. Other motions

- ☒ The party or parties expect to file the following motions before trial (*specify moving party, type of motion, and issues*):
- See MC-025, Attachment 15 (1 page). Facts only; no new Dept. 610 motions.

16. Discovery

- a. ☐ The party or parties have completed all discovery.
- b. ☒ The following discovery will be completed by the date specified (*describe all anticipated discovery*):

<u>Party</u>	<u>Description</u>	<u>Date</u>
Plaintiff	No discovery (CCP 916 stay / pending appeal)	N/A

- c. ☒ The following discovery issues, including issues regarding the discovery of electronically stored information, are anticipated (*specify*):

See MC-025, Attachment 16c (1 page).

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17. Economic litigation

- a. ☐ This is a limited civil case (i.e., the amount demanded is \$35,000 or less) and the economic litigation procedures in Code of Civil Procedure sections 90-98 will apply to this case.
- b. ☐ This is a limited civil case and a motion to withdraw the case from the economic litigation procedures or for additional discovery will be filed (*if checked, explain specifically why economic litigation procedures relating to discovery or trial should not apply to this case*):

18. Other issues

- ☒ The party or parties request that the following additional matters be considered or determined at the case management conference (*specify*):

See MC-025, Attachment 18 (2 pages). Corrections to defense Aug 14 CM-110.

19. Meet and confer

- a. ☐ The party or parties have met and conferred with all parties on all subjects required by rule 3.724 of the California Rules of Court (*if not, explain*):
 CRC 3.724 30-day date (Aug 10, 2026) has passed. Parties conferred through pending motions (including CCP 391, which Plaintiff opposed) and the defense Aug 14 CMS. CRC 3.724 email has not been sent.
- b. ☐ After meeting and conferring as required by rule 3.724 of the California Rules of Court, the parties agree on the following (*specify*):
 Parties do not agree on a 180-day continuance pending dismissal. Plaintiff asks a further CMC of about 90 days; no trial; no discovery.

20. Total number of pages attached (*if any*): 12

I am completely familiar with this case and will be fully prepared to discuss the status of discovery as well as other issues raised by this statement, and will possess the authority to enter into stipulations at the case management conference, including the written authority of the party where required.

resolution,
 at the time of

Date: 08/14/2026



Franciscus Dylan Rosario

(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY)

(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY)

☐ Additional signatures are attached.

SHORT TITLE: Rosario v. CSAA Insurance Exchange	CASE NUMBER: CGC-25-631802
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ATTACHMENT (Number): 4b

(This Attachment may be used with any Judicial Council form.)

DESCRIPTION OF CASE (ITEM 4b)

This action asserts insurer-specific independent torts against CSAA Insurance Exchange: fraud and intentional misrepresentation; bad faith / breach of the implied covenant; and Insurance Code unfair-practices claims. The First Amended Complaint was filed February 25, 2026.

This case is not filed to 'punish Defendant for funding and directing the defense.' Funding and directing a defense can be a fact of insurer control; it is not the cause of action. The case is not a collateral attack on CGC-21-594102 and is not a substitute for A173827. Unlimited civil; jury demanded. If the complaint is revived on appeal, Plaintiff preserves the jury demand and unlimited designation.

Damages: compensatory; punitive; statutory penalties; injunctive relief; costs and interest. Dept. 610 need not relitigate prong two.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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(Add pages as required)

SHORT TITLE: Rosario v. CSAA Insurance Exchange	CASE NUMBER: CGC-25-631802
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ATTACHMENT (Number): 13a

(This Attachment may be used with any Judicial Council form.)

RELATED CASES (ITEM 13a)

1. Rosario v. Abdelhalim et al., CGC-25-631801, SF Superior. Companion. Anti-SLAPP granted August 6, 2026 (DocID 10361462). Reconsideration denied August 11, 2026 (minutes; no order DocID). Fees: September 8, 2026, 9:00 a.m., Dept. 301. CMC September 9, 2026, Dept. 610. Appeal of the 801 anti-SLAPP order: filed August 14, 2026; File & ServeXpress Tx 80347363.
 2. Rosario v. Abdelhalim et al., CGC-21-594102 (trial) / A173827 (First District). Verdict for defense April 2025. That appeal is separate from the new 801/802 anti-SLAPP appeals.
 3. This action's anti-SLAPP appeal. Grant July 1, 2026, entire FAC (DocID 10297081). Notice of Appeal filed August 14, 2026; File & ServeXpress Tx 80347004. Appellate number TBA.
- Defense Att. 13a used a hyphenated 'CGC-25-631-801'. The companion number is CGC-25-631801.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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ATTACHMENT (Number): 15

(This Attachment may be used with any Judicial Council form.)

OTHER MOTIONS (ITEM 15) - FACTS ONLY

Plaintiff does not ask Dept. 610 to set a new motion calendar or to hear fees or CCP 391. Those matters remain in Dept. 302.

Heard / pending (this action, CGC-25-631802):

- Special motion to strike granted July 1, 2026, entire FAC (DocID 10297081).
- Defendant's CCP 425.16(c) fee motion: August 26, 2026, 9:00 a.m., Dept. 302 (demand \$32,928.27 as noticed).
- Defendant's CCP 391 vexatious-litigant motion: same August 26, 2026 calendar, Dept. 302. Plaintiff has opposed the 391 motion.
- Notice of Appeal: filed August 14, 2026; File & ServeXpress Tx 80347004. Stay notice to Dept. 302 filed August 14, 2026; File & ServeXpress Tx 80347745.

Companion 801 (for notice only): strike order August 6, 2026 (DocID 10361462); fees September 8, 2026, Dept. 301.

No Answer has been filed. Dept. 610 should not convert this CMC into a fee or vexatious hearing.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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ATTACHMENT (Number): 16c

(This Attachment may be used with any Judicial Council form.)

DISCOVERY (ITEM 16c)

Plaintiff served written discovery in April 2026. A CCP 425.16(g) stay attached when the anti-SLAPP motion was filed. The grant as to the entire FAC is now on appeal (filed August 14, 2026; File & ServeXpress Tx 80347004).

CCP 916 and Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180 stay further trial-court proceedings on matters embraced in the appealed order. Plaintiff will not propound or move to compel discovery while that stay and the appeals are in effect, and does not ask Dept. 610 to compel, set discovery cutoffs, or order an Answer.

Defendant states no discovery will be conducted. Plaintiff agrees that no discovery should be ordered at this CMC.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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ATTACHMENT (Number): 18

(This Attachment may be used with any Judicial Council form.)

ITEM 18 - CORRECTIONS TO DEFENDANT'S AUGUST 14, 2026 CM-110 (CGC-25-631802)

This Attachment is Plaintiff's reply on the CM-110. It is not a standalone opposition brief and does not brief Baral, fee lodestar, or CCP 391 elements.

1. Item 4. The action is not filed to 'punish Defendant for funding and directing the defense.' See Attachment 4b. Insurer-specific independent torts; not a collateral attack on CGC-21-594102.

2. Items 6 and 7. A grant as to the entire FAC does not 'obviate' trial if the order is reversed. Estimated length is 5 days if the matter returns from appeal, not 0. Plaintiff is not ready within 12 months because of the pending 801/802 anti-SLAPP appeals, not because the claims are A173827.

3. Item 13. Related cases include companion CGC-25-631801, CGC-21-594102 / A173827, and this action's anti-SLAPP appeal (filed August 14, 2026; File & ServeXpress Tx 80347004). The \$76,308.90 underlying-cost line is not a Dept. 610 CMC issue.

4. Item 15. Fees and CCP 391 are calendared in Dept. 302 on August 26, 2026. Leave them there. Plaintiff has opposed 391.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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ATTACHMENT (Number): 18

(This Attachment may be used with any Judicial Council form.)

ITEM 18 (continued)

5. Item 18 (defense request). A 180-day continuance 'pending dismissal' prejudices appeals that are being perfected. An anti-SLAPP grant plus a pending appeal is not a judgment of dismissal. CCP 916 / Varian stays trial-court proceedings on matters embraced in the appealed order; it does not authorize Dept. 610 to treat the case as over or to dismiss.

Plaintiff asks Dept. 610 to: (a) take notice of the Notice of Appeal (filed August 14, 2026; File & ServeXpress Tx 80347004) and the stay notice to Dept. 302 (filed August 14, 2026; File & ServeXpress Tx 80347745); (b) not dismiss; (c) not set trial and not order discovery; (d) decline a dismissal-pending 180-day continuance and instead set a further CMC of about 90 days after the August 26 and September 8 hearings and after appellate numbers issue, without prejudice to later continuance during the appeals; (e) leave fees and 391 in Dept. 302; (f) preserve jury and unlimited designation if the complaint is revived.

Do not issue a trial-setting or arbitration order at this CMC. If the Court later does so, LRSF 3.2 Notice of Objection would be a later paper, not part of this filing.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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ATTACHMENT (Number): 19

(This Attachment may be used with any Judicial Council form.)

MEET AND CONFER (ITEM 19) - CRC 3.724 / 3.727

The CRC 3.724 30-day meet-and-confer date (August 10, 2026) has passed. The parties have conferred through pending motions (anti-SLAPP, fees, and CCP 391, which Plaintiff opposed) and through Defendant's August 14, 2026 CM-110. The CRC 3.724 email has not been sent.

They do not agree on a 180-day continuance pending dismissal. Plaintiff's position is a further CMC of about 90 days, no trial date, no discovery order, and no dismissal. ADR: Plaintiff is willing to mediate; Defendant's form left the ADR table blank.

Counsel identified on the service packets: Tyler J. O'Connell (toconnell@porterscott.com); Chad S. Tapp (ctapp@porterscott.com); Mason Schubert (mschubert@porterscott.com); Sarah J. Blithe (sblithe@porterscott.com).

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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